

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 57
JUDICIAL OFFICER: J. YAMAMOTO
HEARING DATE: 09/11/2026

The tentative ruling will become the Court's FINAL ruling unless by 4:00 p.m. the Court day before the hearing Counsel or self-represented parties email the department (no phone or fax) to request argument and specify the issues to be argued. Parties requesting argument must also similarly advise all other affected counsel or self-represented parties no later than 4:00 p.m. that same day. Failure to timely advise the Court and other affected participants will preclude any party from arguing the matter (Local Rule 3.43(2)).

The Court waives notice of parties appearing remotely via ZOOM (no CourtCall allowed). Parties do not need to file a Notice of Remote Appearance, but must serve the notice as set forth in Rule 3.672 unless the parties have stipulated to waive notice.

<https://www.courts.ca.gov/documents/ra010.pdf>

Department 57's email address is: dept57@contracosta.courts.ca.gov

Department 57 is inviting you to a scheduled ZoomGov meeting.

Topic: Department 57 hearings

Time: This is a recurring meeting Meet anytime

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1. 10:30 AM CASE NUMBER: C25-00216
CASE NAME: TEQUILA JACKSON VS. MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION FOR DISCOVERY DEEM REQUESTS FOR ADMISSIONS, SET ONE**
FILED BY: MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Defendant's motion for an order to deem Requests for Admission, Set One admitted is denied.

Motions are deemed moot, as Plaintiff has provided responses to the discovery prior to the hearing.

Sanctions not requested.

2. 10:30 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO**
FILED BY: HOWARD ORTHOPEDICS, INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders thirty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall comply with Defendant's: Requests for Production of Documents – Set Two and Special Interrogatories, Set Two.

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Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

The court further orders monetary sanctions against Plaintiff in the amount of \$ 3,250 to be paid by Plaintiff to Defendant within 20 days of entry of this order.

3. 10:30 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO SPECIAL INTERROGATORIES, SET TWO**
FILED BY: HOWARD ORTHOPEDICS, INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders thirty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall comply with Defendant's: Requests for Production of Documents – Set Two and Special Interrogatories, Set Two.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

The court further orders monetary sanctions against Plaintiff in the amount of \$ 3,250 to be paid by Plaintiff to Defendant within 20 days of entry of this order.

4. 10:30 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
***HEARING ON MOTION IN RE: FOR JOINDER IN DEFS MOTION TO COMPEL PLAINTIFF'S RESPONSES TO REQ FOR PRODUCTION OF DOCUMENTS SET 2**
FILED BY: DEMAINE, BRIAN KEITH
TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to requests for discovery is granted.

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Considering the Defendant's declaration, the court orders thirty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall comply with Defendant's: Requests for Production of Documents – Set Two and Special Interrogatories, Set Two.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

The court further orders monetary sanctions against Plaintiff in the amount of \$ 3,250 to be paid by Plaintiff to Defendant within 20 days of entry of this order.

5. 10:30 AM CASE NUMBER: N23-0409

CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE

***HEARING ON MOTION IN RE: JOINDER IN DEF HOWARD ORTHOPEDICS, INC MOTION TO COMPEL PLAINTIFF'S RESPONSES TO SPECIAL INTERROGATORIES, SET 2**

FILED BY: DEMAINE, BRIAN KEITH

TENTATIVE RULING:

Defendant's motion to compel Plaintiff to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders thirty days to comply with this order. Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall comply with Defendant's: Requests for Production of Documents – Set Two and Special Interrogatories, Set Two.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

The court further orders monetary sanctions against Plaintiff in the amount of \$ 3,250 to be paid by Plaintiff to Defendant within 20 days of entry of this order.